

Narendra Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 15 September 2022 · WRIT - C No. 25911 of 2022 · **Writ disposed; clause 6.5 objection directed to Executive Engineer; coercive action stayed two months.**

HEADNOTE

A post-disconnection dispute confined to computation of electricity liability is to be raised by objection before the Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005. The High Court disposed of the writ without examining the bills, directing a 6.5 objection within two weeks, an expeditious decision preferably within six weeks, and a stay of coercive measures for two months or until that decision.

FACTUAL SUMMARY

The petitioner, Narendra Singh, filed a writ after electricity to his premises was disconnected and subsequent bills were raised, which he alleged were illegal. He framed the controversy as computation of his electricity liability following disconnection. Respondent no. 3 is the Executive Engineer, Vidyut Gramin/Nagariya Vitran Khand, Dakshinanchal Vidyut Vitran Nigam Ltd., EDSD Rajapur, District Chitrakoot. Counsel for the petitioner was Sudhir Kumar (Chandraul); the State and the distribution licensee appeared.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

post-disconnection billing dispute — remittal to Executive Engineer

HOLDING

Without entering the merits, a writ raising only computation of post-disconnection electricity liability is disposed of by directing the consumer to file an objection before the concerned Executive Engineer under clause 6.5 of the Electricity Supply Code, 2005 within two weeks; the competent authority shall decide expeditiously, preferably within six weeks; no coercive measures shall be taken for two months or until that decision; if the objection is not filed in time, the licensee may proceed in accordance with law. ¶ 1

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ Writ challenging post-disconnection bills as illegal, raising only a computation-of-liability dispute, disposed of by directing a clause 6.5 objection to the Executive Engineer without a merits decision. ¶ 1

clause-6.5-statutory-remedy-disputed-bill Bills alleged to have been illegally raised after disconnection treated as a clause 6.5 computation dispute for the Executive Engineer. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — LEGALITY AND QUANTUM OF THE POST-DISCONNECTION BILLS

Court expressly declined to enter the merits of the petitioner's claim. ¶ 1